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Midst Anthropology's Problems

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In *Les Mots et les choses* (1966) Michel Foucault identified three arenas of discourse that in their (unstable and incomplete) coalescence at the end of the Classical Age constituted the object called man (*l'homme*). This figure emerges at the intersection of three domains—life, labor, and language—unstably unified around (and constituting) a would-be sovereign subject. The doubling of a transcendental subject and an empirical object and their dynamic and unstable relations defined the form of this being. In 1966 Foucault held an epochal view of man and of modernity. In his conclusion, Foucault intimated the imminent coming of a new configuration of language about to sweep the figure of man away like “a face drawn in the sand at the edge of the sea” (1966:398, my translation). It now appears that this presage was miscast: In the ensuing decades, language (in its modality as *poiesis*) has not turned out to be the site of radical formal transformations through which this being, man, would either disappear entirely, as Foucault intimated, or would transmute into a new type of being as predicted by Gilles Deleuze (1988).

Although Foucault did not directly return to his diagnosis of the “end of man,” he did modify his understanding of modernity as an epoch. In his essay “What is Enlightenment?” Foucault posed the challenge of inventing a new philosophic relationship to the present; one in which modernity was taken up not through the analytic frame of the epoch but instead through a practice of inquiry grounded in an ethos of present-orientation, of contingency, of form-giving. Perhaps today one significant challenge of forging a modern ethos lies in thinking about how to relate to the issue of *anthropos*. Such a task may present different types of challenges to philosophical thinkers, such as Foucault, than to the anthropologist. Regardless of how one approaches those questions (an issue to which we return in the conclusion), what if we took up recent changes in the Logoi of life, labor, and language, not as indicating an epochal shift with a totalizing coherence (sovereignty, man), but rather as fragmented and sectorial changes that pose problems—both in and of themselves, as well as for attempts to make sense of what form(s) *anthropos* is currently being given?

Labor, Life, Language

In 1966, capitalism was strong in its enclaves but not completely unchallenged: It had yet to face what now appears to have been a hopeless socialism and with failed schemes of Third-World development of whatever political and economic form. In 2001, no one can doubt that capitalism has become more expansive, destructive, and productive than ever before. Nor can one doubt the growing scope and scale of market relations and the concomitant commodification of an ever-greater range of things previously held to be external to the realm of monetary value. However, today there exists neither a Logos adequate to understanding this globalizing *oikeumene* nor a means of regulating its volatility. In 1966, the mechanics of the genetic code and its extraordinary universality was just being discovered. The ensuing decades have seen the most dramatic and significant changes in the life sciences since Darwin. Yet no molecular Darwin has yet appeared to provide a unifying Logos. Where and when and whether the technology-driven advances of genomics and biotechnology will transform into an understanding of living beings more adequate to their evident complexity remains to be seen. In 1966, although semiotics and/or cybernetics and/or cognitive science competed to unify all language, today—even though we are in the midst of a revolution in the invention and spread of technologies of communication and information—there exists no unifying Logos of *discourse*.

At the very least we can say that we are currently undergoing and participating in a distinctive set of inflections of labor, life, and language.¹ Perhaps, after all, the project of seeking man—life, labor, language as the Logos of modernity—*has* been dissolved. Or it may be that seeking such a logos actually was the wrong approach. Perhaps the multiplication and heterogeneity of recent Logoi has put anthropos once again into question. We can see more clearly today that Foucault's man was only one instantiation of the figure of anthropos. However, the one thing we should not be doing is attempting to find a new, hidden, deeper, unifying rationality or ontology. The alternative is not chaos. Rather, using the concept of problematization and the topic of anthropos, we can direct our efforts toward inventing means of observing and analyzing how the various Logoi are currently being assembled into contingent forms. In an older philosophic vocabulary, the analyst begins with terms. John Dewey is helpful here: "A term is an object so far as that object is undergoing shaping in a directed act of inquiry" (1916:435).² Our inquiry concerns anthropos.

Inquiry: From Reconstruction to Problematization

This surfeit of forms of knowledge is problematic. It is challenging to find ways to deal with such a situation. To do so, we pursue our convocation of Dewey and Foucault—two thinkers who made the issues of encumbrances, discordances, and problems into topics of inquiry.

In 1916, John Dewey republished a group of his essays under the title *Essays in Experimental Logic* (originally published in 1903). He opened his long

introduction by advising his readers that “the key” to his essays was to be found in his emphasis on “the *temporal* development of *experience*.” Thinking was itself a temporal experience or, to be more precise, thinking was a temporal experiment. Terms such as “‘thinking,’ ‘reflection,’ and ‘judgment,’” Dewey asserted, are not faculties but rather “denote *inquiries* or the results of inquiries, and that inquiry occupies an intermediate and mediating place in the development of an experience” (1916:1, emphasis added). Dewey’s summation of the logic of experiment and experience places reason squarely in an intermediate position and assigns it a mediating function. Thinking takes place in a milieu: Playing on the original sense of the term *mi-lieu* (between places), one can say that thinking takes place between places but not just anywhere or anytime. Dewey explains:

From the standpoint of temporal order, we find reflection, or thought, occupying an intermediate and *reconstructive* position. It comes between a temporally prior situation (an organized interaction of factors) of active and appreciative experience, wherein some of the factors have become discordant and incompatible, and a later situation, which has been constituted out of the first situation by means of *acting* on the findings of reflective inquiry. The final solution thus has a richness of *meaning*, as well as a *controlled* character lacking in the original. [1916:18–19, emphasis added]

Dewey’s claims are both persuasive and contestable.

For Dewey, then, thinking is not only a practice set in a dynamic milieu, it is an action called forth and set into motion by a discordance. The function of thinking is to rectify—in the sense of “realign”—the factors that have produced, and/or have been altered by, a disruption. In order to fulfill its function, thinking (and hence, presumably the thinker) must take up an active relationship to the milieu in which she finds herself. Further, Dewey assigns thinking the task of providing a reconstructive “richness of meaning,” although exactly what he means by *richness* remains vague. Thinking, then, is a situated practice of active inquiry, the role and goal of which is to initiate a motion that results in a movement from a discordant situation to a less discordant situation. Thinking is nothing more nor less than this practice.

The value terms by which the norms of that motion (and the practice) are guided and judged are *control* and *meaning*. *Control* and *meaning* are not subjective terms. Neither the primary locus nor the yardstick of this practice are to be found in the subject. Dewey makes this point through a striking, if ambiguous, formulation: “It is the needs of a *situation* which are determinative” (1916:70). We can gloss his claim by saying that thinking is a temporally unfolding, situated practice, the function of which is to clarify and to realign a problematic situation. The site of the trouble and the resolution is the problematic situation. Intervention is judged successful when it yields a reconstructive change through meeting the needs of a situation. Intervention and inquiry are essentially practical. Dewey, after all, was a pragmatist, an optimist, and an American. Thinking operated with no fixed universal principles, no pre-given

and unalterable faculties. Whether there are situations that cannot be repaired is not a question that can be answered in the abstract. Nonetheless, one can raise the issue of whether Dewey allows sufficient space either for critical limits or a sense of pathos or tragedy, and if not, whether this lack is a major limitation of his work. The answer is complicated, as Dewey was made aware of these issues through repeated attacks by the left and right (theological and secular) in America over more than half a century.³

A core ambiguity of Dewey's position can be located in his noteworthy metaphoric frame. For a metaphoric frame it is: How, we wonder, do situations have *needs*? Without entering into the vast literature of debate about functionalism, organicism, and anthropocentrism that characterized so much of 20th-century social thought, not to mention the equally vast scholarly production around metaphor to which the cultural sciences for the last half century have devoted so much effort, let us simply suggest, following Georges Canguilhem, that it is epistemologically and historically preferable to say that modern situations are *normed*.⁴ Or, to be more precise, norms function actively so as to ceaselessly spread a grid of normativity onto an expanding range of situations. Taken up from this angle, we can move from Dewey's approach to situations in general to a historically more specific subset of discordant dynamism.

Problematization

One can find a partial but pronounced resonance, a purely arbitrary one in terms of direct influence, in Michel Foucault's concept of "problematization." A "problematization," Foucault writes, "does not mean the representation of a preexistent object nor the creation through discourse of an object that did not exist. It is the ensemble of discursive and nondiscursive practices that make something enter into the play of true and false and constitute it as an object of thought (whether in the form of moral reflection, scientific knowledge, political analysis, etc.)" (1994:670). The reason that problematizations are problematic, not surprisingly, is that something prior must have happened to introduce uncertainty, a loss of familiarity; that loss, that uncertainty is the result of difficulties in our previous way of understanding, acting, relating (1994:598). For Foucault there are always several possible ways of responding to the same ensemble of difficulties. Consequently, the primary task of the analyst is not to proceed directly toward intervention and repair of the situation's discordance but rather to understand and to put forth a diagnosis of "what makes these responses simultaneously possible." In contrast to Dewey, Foucault stops short, in a rigorously self-limiting manner, of proposing means of rectification. The extent to which Foucault's practice could be assimilated to a reconstruction (in Dewey's sense) is therefore complicated. He would seem to be constructing something like an ideal type, but because the sense of what Weber meant by "ideal type" has been massively misinterpreted, this comparison has limited utility.

For Foucault the specific diacritic of thought is found not only in this act of diagnosis but additionally in the attempt to achieve a modal change from

seeing a situation not only as “a given” but equally as “a question.” Such a modal shift seeks to accomplish a number of things. It asserts that not only are there always multiple constraints at work in any historically troubled situation, but that multiple responses exist as well. Foucault underscores this condition of heterogeneous, if constrained, contingency—“this transformation of an ensemble of difficulties into problems to which diverse solutions are proposed”—in order to propose a particular style of inquiry. Foucault saw his calling as a contribution to the “freeing up” of possibilities. The act of thinking is an act of modal transformation from the constative to the subjunctive, from the singular to the multiple, from the necessary to the contingent, and ultimately from the potential to the virtual.

A problematization then is both a kind of general historical and social situation—saturated with power relations, as are all situations, and imbued with the relational “play of true and false,” a diacritic marking a subclass of situations—as well as a nexus of responses to that situation. Those diverse but not entirely disparate responses, it follows, themselves form part of the problematization over time as it develops or unfolds (although both words are too Hegelian). What Foucault is attempting to conceptualize is a situation that is neither simply the product of a process of social and historical construction nor the target of a deconstruction. Rather, he is indicating a historical space of conditioned contingency that emerges in relation to (and then forms a feedback situation with) a more general situation, one that is real enough in standard terms, but is not fixed or static. Thus the domain of problematization is constituted by and through economic conditions, scientific knowledges, political actors, and other related vectors. What is distinctive is Foucault’s identification of the problematic situation (the situation of the process of a specific type of problem asking) as simultaneously the object, the site, and ultimately the substance of thinking.

In contrast to earlier positions he held, Foucault’s thinker is by definition neither entirely outside of the situation in question nor entirely enmeshed within it without recourse or options. The defining trait of problematization does not turn on the couplings of opposites (outside or inside, free or constrained), but rather on the type of relationship forged between observer and problematized situation. The specificity of that relationship entails taking up the situation simultaneously as problematic and as something about which one is required to think.

The Market in Transnational Humanitarianism

The emergence of the complex of discourse, practices, and strategies lumped under the term *ethics* or *bioethics* or *medical ethics* indicates the presence of a problematized domain. One might well wonder: How did “ethical relations” become a zone of such charged importance? On reflection, however, we must pose the prior questions: When and under what circumstances did “ethical relations” become an object domain at all? How did it become a problem, and a solution, and thereby a new problem domain?

One can say that two of the most distinctive innovations of the 1990s inflecting anthropos were: the visionary projects, technological developments, and institutional stabilizations of (1) genome mapping and (2) bioethics. Although bioethics is perhaps a decade older than genome mapping their trajectories have been in part entwined in recent years. Both genomic mapping and bioethics are increasingly transnational although both were powerfully spearheaded in the United States. Recently, European Commissions and numerous authorized spokespeople have elaborated and disseminated the associated doctrines and practices around the world. Thus, for example, following in the wake of the venture capitalists, biotech start-ups, and multinational pharmaceutical companies, more and more people around the world are growing accustomed to thinking about themselves (and their pets and plants and food) as having genomes. These genomes, it is believed, contain precious information that tells the truth about who they (and their pets and plants and food) really are as well as providing clues to what their future holds. Influenced by the aforementioned purveyors of biopolitical futures, more and more people are also coming to believe that their genomes contain information that is rightfully their property. Not only is their individual and collective identity being violated, it is being pirated. Both multinationals and NGOs frequently work—however unequal they may be in their political struggles—to reinforce this view of the body, the self, ownership, and truth. Power and resistance, it has been claimed, can act mutually, if unwittingly, so as to re-enforce a type of rationality and the forms it takes.

Human Rights: Human Good?

Historian and journalist Michael Ignatieff makes a claim that is striking and, on reflection, perplexing. The striking claim: “There has been a revolution in the moral imagination in the last fifty years . . . and its most distinctive feature is the emergence and triumph of human rights discourse as the language of human good” (Ignatieff 1999:313). The perplexity: Is the claim true? A series of other perplexities spring to mind. What brought about this change? What was the dominant figure of moral imagination in Europe before World War II? Is there, in fact, a dominant figure of morality? Other related questions equally come to mind. For example: How does the human rights discourse relate to issues of health? How do both rights and health relate to biopolitics?

The contemporary self-evidence of the legitimacy of human rights discourse is even more striking when one realizes that before 1945 there existed no international legal framework for the protection of individual human rights. As Hannah Arendt (1951) made clear in her work on totalitarianism, those without passports ran the greatest risks, as only states (and their citizens) had rights. The fact of having been stripped of an official attachment to a nation left one in the most precarious and vulnerable state. This fact underscores the historical originality but also the rather curious condition instantiated by the new formation of human rights to which Ignatieff refers. After all, rights discourses have been around for centuries without having been given an extradiscursive

institutional location to defend those rights. If human rights are natural, or God-given, or merely self-evident, then how is it that protection at the scale of "humanity" has not been previously invented? What has made this political and cultural shift toward such protection possible? Where has the urgency come from? To begin to make clear that these are questions, we must think more about the fact that the claim to self-evidence is itself problematic. It is both coherent and curious that the ethical domain that emerged was one that could, at least in principle, challenge and/or transform the sovereignty of the nation-state.

Although the Enlightenment idea of a common human history with cosmopolitan intent and reflections on what conditions would be required to produce "Perpetual Peace" had been a topic in a long-standing problematization (most famously in the writings of Immanuel Kant), yet it was only after the fall of the Soviet empire that the conditions have come about, Ignatieff argues, for the appearance of an at least virtual "global civil society" (1999:313). Ignatieff underscores that the Holocaust is not the main motive force in putting rights on the world agenda. The special consciousness of the Holocaust as an utterly singular event only became widespread in the 1960s and 1970s when the generation after those who had lived through the war came to political consciousness. A similar argument is spelled out in detail for the United States by Peter Novick in *The Holocaust in American Life* (1999).

Ignatieff specifies his claim when he asserts that with the fall of the Soviet empire there is now a "single human rights culture in the world" (1999:318). This claim is difficult to evaluate—after all, it is generally recognized within anthropology that the culture concept today raises more questions than it solves (see, for example, Clifford 1988). Whatever one wishes to make of, say, precontact "Hawaiian culture" after the lengthy, sophisticated, and acrimonious debate between Marshall Sahlins (1985, 1995) and Gananath Obeyesekere (1992) concerning its status and meaning, "rights culture" would certainly have to have a different status. Whatever kind of culture "rights culture" is, it certainly must exist and shape people's lives in a manner different from Hawaiian culture.

Nor is it as self-evident as Ignatieff claims that rights discourse actually does dominate the moral landscape of the human good. Market cultures and religious cultures—to use a short hand and to trouble the conceit of culture even more—remain potent contenders in determining *who* speaks morally, *how* to speak morally, and *what* moral speaking is about. Secular rights cultures, cultures of consumption, and a wide range of religious and neotraditionalist moral discourses, and the symbols deployed by all three, function at times and in specific settings as competitors (or rank enemies), at times and for certain issues as complexly complementary, and at times and for specific issues as simply co-present (or cordoned off one from the other). Claims to hegemony are typical of this moral landscape but practices of coexistence are equally representative.

Ignatieff points in the direction of this elusiveness and substantive contradiction (or pragmatic flexibility) when he writes: "The legitimacy of human

rights is not so much its authoritative universalism, so much as its capacity to become a moral vernacular for the demand for freedom within local cultures" (1999:320). A moral vernacular? Perhaps, albeit one that derives in part from a highly articulated transnational form that is anything but vernacular. It is obvious that market cultures and religious cultures often are also the vehicle for such moral vernaculars, just as they are themselves transnationally located, a fact that can not be readily accommodated into a narrative of hope and progress set within the essentially 19th-century grid of modernization and tradition.

Ignatieff, remains, as he himself says, a Victorian (whatever such a claim could actually mean?).⁵ The 19th century, of course, was the time of triumphant ascendancy of normalization: a time of World Expositions and international competitions over capital, science, and sovereignty. As if surprised at himself, Ignatieff immediately draws back from his self-characterization as a Victorian when he writes: "Human rights is misconceived if it is understood as a breviary of values: Rights talk can do no more than formalize the terms in which conflicts of values are made precise and therefore rendered amenable to compromise and solution. This is their dynamic: They do not, in themselves, resolve arguments; they create the steadily burgeoning case law, which in turn expands the ambit of human rights claims" (1999:321). Rights language is dynamic, destabilizing; it is, in the sense Canguilhem and then Foucault used the term, *normalizing*: "Once rights language exists in public consciousness it sets up a dynamic directed at the inevitable gap between what a society practices and what it preaches." That gap is its engine, its steam, its normativity. Of course, just as "culture" is rather in disrepute as a concept today, so, too, is "society." Societies do not practice anything anymore than they preach. Spokesmen for regimes, ideologues, missionaries, and pastors preach, not society.

In any event, there is much about this talk of rights that is new; it is generally not autochthonous (at least not in the specific forms in which it is being disseminated around the world through a variety of practices—especially international bodies linked to the United Nations and a multitude of NGOs); it is not rooted in the long-standing beliefs, practices, and representations of a defined community. Rather it would seem to be partly a doctrine, partly a module in what Robert Bellah has called a "life-style enclave" (as a not-entirely-positive characterization of a trend to self-conscious and de-localized practices stitched together in a form of life that Bellah characterizes as "thin"). But newness and "thin-ness" are derogatory only if one thinks that thick and old are better. If one sees the rise, spread, and triumph of "rights talk" as a good thing, then its newness and perhaps the ready comprehensibility of its core message would carry with them a positive valence. This positive valuation is one Ignatieff shares.

Regardless of one's individual judgment of these matters, as human scientists we want to observe how this talk—in fact, a set of discursive and nondiscursive practices—is taking shape. Our imperative is to learn more about the variety and practices of human rights groups as well as the (now visible) preexisting moral landscapes to which the carriers of rights culture bring their message

of change and improvement. Although there are governments who contest and combat "rights talk" (and the groups who articulate it) on a variety of grounds, including national sovereignty and traditional culture, it is plausible to argue that currently no secular counterdiscourse exists that has anything like the legitimacy, power, and potential for successful expansion that the human rights discourse currently possesses.

Transnational Virtue

A significant move in specifying how one might approach these developments sociologically is made by Yves Dezalay and Bryant Garth (1998b). They provide a penetrating analysis of recent, seemingly contradictory, developments in the field of human rights. "The movement for human rights is often presented as an exemplary illustration of those new transnational practices that escape from state order. However, by a sort of paradox, it is the national state's recognition of this 'soft law' that represents the fulfillment of the militants' efforts, leading to a growing professionalization and competition within the market of political activism" (1998:23). There are several claims embedded here: First, the perfectly straightforward and not especially paradoxical point that (within a transnational field) national interests, institutions, and players remain significant actors; sovereignty in most domains remains national. Even when it is not absolute, national states and institutions remain funnels, as it were, through which things must pass on the way in or the way out. Although, as many authors have argued, we are witnessing new relationships between the national and the transnational, this transformation cannot be equated with the definitive eclipse of national sovereignty.

More original is a second claim that there is a *market* for humanitarianism. In their book, *Dealing in Virtue* (1998a), Garth and Dezalay provide a detailed account of one example of how a sector of this market—international legal arbitration—came into existence, changed, and how it currently operates. Strikingly, success within the humanitarian market depends on many of the same strategies employed in the venture capital world. These include capturing the attention of various traditional media as well as innovating in the use of new media (NGOs pioneered the use of the fax machine and then the internet for political mobilization and the articulation of virtual communities), securing funding from donor institutions, translating these resources into position papers for international conferences and agencies, high mobility of personnel, and so forth. One sees a marketing of symbolic capital resources "whose investments and counseling strategy must prepare its clients to overcome the very intense competition that reigns in the market of civic virtue" (1998a:23). Following Bourdieu, our authors do not assert that the market of humanitarianism and the capital markets are the same, only that there are parallel principles and forces at work. The analyst's task is to identify those principles and forces as well as to investigate how "capital" from one market is converted into "capital" (or advantage) in another. Garth and Dezalay analyze in some detail the changing players and goals involved in the "diffusion of this new symbolic

imperialism.” They speak of an “elitist democratic” project, conceived and carried by a small group of “learned men” (English in the text) “desirous of social progress and civic morality, but very respectful of the interests of big capital whose inheritors, collaborators, and beneficiaries they are” (1998a:27). The field of these civic engagements and disagreements is a microcosm of the fractures within the ruling class. To invest in civic virtue is also to construct the state and to assure oneself of a position of legitimacy on the international market of *savoirs d'état* (state knowledges) (1998a:40).⁶

In *Empire*, Antonio Negri and Michael Hardt make a similar point. They argue that military intervention is only one form of imperial intervention (by imperial they do not mean imperialist but the regime of sovereignty that comes after imperialism) (Hardt and Negri 2000). Judicial and moral forms provide potent vectors as well. In fact, Hardt and Negri argue that the softer “moral” forms are frequently deployed first. Following Weber, we might say that such moral intervention is less costly in both economic and political terms. The most potent new form of such intervention is the so-called nongovernmental organizations that, not being state based, are especially well suited to make moral claims. Such humanitarian NGOs as Amnesty International, Oxfam, and *Médecins sans frontières*, (often despite the conscious intentions of their participants) are

some of the most powerful pacific weapons of the new world order. These NGOs conduct “just wars” without arms, without violence, without borders. Like the Dominicans in the late medieval period and the Jesuits at the dawn of modernity, these groups strive to identify universal needs and defend human rights. Their modern universalism operates both at the level of rights and at the level of the most basic needs of life. [2000:36]

It is the key symbol of a growing market of increasing sophistication for protectors of living beings and vital things. Its space is the space of the biopolitical.⁷

For those in the human sciences who prefer to approach these grand themes back to historically specific cases and locations, Rothman, in his book *Strangers at the Bedside* (1991), provides a helpful argument and chronology. He shows that the rise of medical ethics boards was not the consequence of the Nuremberg trials; rather, the lesson of Nuremberg in the United States (and in Europe) was held to be that there was a sharp line cordoning off the pathological from the normal. Nuremberg did not put into question the normal practices or the authority of paternalistic science and medicine. Bioethics in the United States arose from the scandals of Willow Brook, Tuskegee, and so forth. The change in American medicine—the awareness that paternalistic authority needed regulation—took place during the period of 1966 to 1976. In 1966 Henry Beecher, a Harvard medical school professor, exposed abuses in human experimentation; in 1973 a national commission on medical ethics was established by the United States Congress. A new formality was introduced that ushered in collective decision making and what might be called a new publicity. “This new formality transformed the medical chart from an essentially private

broke down in the 17th century. Yet the former questions (about the nature of being, of logic, of general principles of the cosmos) continued to be posed, and more importantly, accepted as legitimate questions that required an answer. Blumenberg's diagnosis is that modern thinkers "found it impossible to decline to answer questions about the totality of history. To that extent the philosophy of history is an attempt to answer a medieval question with the means available to a post medieval age" (1983:xx)—the wrong tools for the wrong job.

These broad historical problem-formations, and the sequential answers provided, constitute Blumenberg's subject matter. "The continuity of history . . . lies not in the permanence of ideal substances but rather in the inheritance of problems" (Blumenberg 1983:48–49). Blumenberg paints a massively detailed portrait of successive articulations of problems, philosophical/theological answers, their failure, displacement, and re-articulation; or, in his vocabulary, a history of re-occupations. However, Blumenberg's thesis is not itself a philosophy of history, at least in the traditional sense. He does not see the developments he chronicles as either unalterable or inevitable, that is as fatal, for such an attitude would place him squarely in a re-occupation zone Blumenberg steadfastly refuses to enter. Rather, it is only in later modernity that the long-term pattern of problem-failure-shift-problem has itself become the topic of theoretical curiosity. This new perspective has opened up because, as Blumenberg explains in his section on "The Trial of Theoretical Curiosity," theoretical curiosity, under constant attack from many quarters, has been obliged to question its own legitimacy. As Blumenberg's translator puts it in his introductory remarks, "by questioning the nature of our own questioning, we alter the dynamic of our curiosity not by fiat, by proscribing questions, but by extending it to and satisfying it on another level" (Wallace 1983:xxviii). In sum, Blumenberg aims at a critical, curative, and affirmative diagnosis. His position is critical in that it seeks to establish through inquiry the contemporary limits of reason; it is curative because if his critical inquiry were to be sustained a situation would arise in which certain of the current maladies afflicting the practice of reason would disappear; and it is affirmative in that it seeks not to denounce or proscribe reason but to articulate the condition of reason's current legitimacy.

Observing, naming, and analyzing the forms of anthropos is the Logos of one type of anthropology. How best to think about the arbitrariness, contingency, and powerful effects of those forms constitutes the challenge of that type of anthropology (understood as *Wissenschaft* or *science*). To place oneself midst the relationships of the contending Logoi (embedded as they are within problematizations, apparatuses, and assemblages) is to find oneself among anthropology's problems.

Notes

An earlier version of this article was presented on May 3, 2001, under the title of "The Problem of Anthropology." It was the second David M. Schneider Distinguished Lecture sponsored by the Society for Cultural Anthropology at its biannual Spring conference, which in 2001 was held in conjunction with the Annual Meetings of the

American Ethnological Society and the Canadian Anthropology Society in Montreal, Canada.

1. Foucault identified *l'homme moderne* as "that being whose politics puts its existence in question" (Foucault 1976:188, my translation).

2. "A term is not of course a mere word; a mere word is nonsense, for a sound by itself is not a word at all. Nor is it a mere meaning, which is not even natural nonsense, being (if it be at all) supernatural or transcendental nonsense. 'Terms' signify that certain absent existences are indicated by certain given existences, in the respect that they are abstracted and fixed for intellectual use by some physically convenient means, such as a sound or a muscular contraction of the vocal organs" (Dewey 1916:51).

3. This issue is explored at great length in the magisterial biography by Westbrook (1991). On the misreading of Dewey as "naïve," see Joas (2000).

4. The issue of "norms" is framed by Georges Canguilhem (1989). A detailed examination of how the process has worked is found in Rabinow (1989).

5. The outlines of a general anthropological critique of the universalism of bioethics is found in Kleinman (1995).

6. "Internationalization, however, does not refer only to activity that takes place at the transnational level. The transnational level, in fact, is best understood as a virtual space that provides strategic opportunities for competitive struggles engaged in by national actors" (1998a:3). "Specific individuals selected for their *virtue*—judgment, neutrality, expertise—yet rewarded as if they are participants in international deal-making. In more sociological terms, the symbolic capital acquired through a career of public service or scholarship is translated into a substantial cash value in international arbitration" (1998a:8).

7. The general contempt for earlier generations of development theory and practice is widespread in the academic left in the United States. Perhaps for this reason few of these professors and their students seem to realize that they themselves are operating on the inside of an updated version of the enterprise that they are criticizing. In this light, the expansion during the 1990s of postcolonial, transnational, and human rights programs in elite American colleges is consistent. A whole new generation of (post)modernization professionals is being trained with specialties in environmental, medical, and human rights issues. Dezalay and Garth's (1998) analytic apparatus (as well as the analysis of Negri) is especially helpful in making this shift visible. Human rights activism came of respectable academic age toward the end of the 1970s with the crowning success of Amnesty International. Human rights are a cosmopolitan, intellectual, political, and media object. Dezalay and Garth, diligent unmaskers of the dominant, express surprise that some multinational corporations are involved in articulating and funding these discursive networks in addition to the governments, universities, and NGOs. Their surprise is surprising. It is based in the assumption that ethics or rights or truth is inherently external to forces of capitalism, or domination, of exploitation, of subjugation. What Dezalay and Garth are reluctant to acknowledge is that their own analysis functions within the market of civic virtue.

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